1.TOBIAS ZANGAIRAI
and
LIOBA VIMBAI ZANGAIRAI
versus
PROSECUTOR GENERAL N.O
and
REGISTRAR OF DEEDS N.O
and
REGISTRAR, CENTRAL VEHICLE REGISTRY
and
OFFICER-IN-CHARGE, ZIMBABWE REPUBLIC POLICE, CID
ASSET FORFEITURE UNIT N.O

2. HCHACC130/24
TOBIAS ZANGAIRAI
versus
PROSECUTOR GENERAL
and
ASSET MANAGEMENT UNIT (AMU)
and
REGISTRAR OF DEEDS N.O
and
OFFICER-IN-CHARGE-ZIMBABWE REPUBLIC POLICE, CID
ASSET FORFEITURE UNIT, HARARE
and
LIOBA VIMBAI ZANGAIRAI

HIGHCOURT OF ZIMBABWE
CHIKOWERO J
HARARE; 25 July and 10 September 2025

Opposed Application

Applicant in person (in both matters)
K Mufute, for the 1st respondent (in both matters)
No appearance for 2nd -5th respondents (in the second matter)

CHIKOWERO J:

[1] This judgment disposes of two matters.

[2] Case number HCHACC 11/25 is an application for the setting aside of an interim freezing order. It is made in terms of s 37J(2) of the Money Laundering and Proceeds of Crime Act [*Chapter 9:24*] ("the Money Laundering Act" or simply "the Act"). It was filed on 18 February 2025. I shall, where appropriate, refer to it as the first matter.

[3] The second matter, being case number HCHACC 130/24, is an application for the discharge of the same interim freezing order in so far as it relates to some of the properties mentioned in that order. It is brought in terms of s 37J(1) and (3) of the same Act. It was filed on 7 August 2024.

[4] It is convenient that I deal with the first matter because the determination thereof will also dispose of the second matter. The need to discuss the merits of the second matter will not be necessary.

[5] On 27 January 2023 this court granted an *ex parte* application for an unexplained wealth order combined with an interim freezing order. This was at the instance of the first respondent, under case number HACC 01/23. In terms thereof the applicant herein (who was the first respondent) was required to give a sworn statement explaining how he acquired some twenty-four properties listed in the order. That statement was to be delivered to the officer in charge, Zimbabwe Republic Police Criminal Investigations Department at corner Josiah Chinamano Avenue and 10th Street Harare within thirty days of the service of the order on the applicant.

[6] In addition, an interim order was granted the terms of which were to freeze any dealings in the said properties until such time that the court were to order otherwise.

[7] The applicant complied with the unexplained wealth order combined with the interim freezing order. In other words, the applicant delivered his sworn statement to the Officer-Charge within the period directed by the order.

[8] Section 37J(2) of the Act reads:

> "Any person subjected to an interim freezing order may at any time apply to the High Court that issued the order to set it aside on good cause shown."

An interim freezing order is exactly that -an interim order. It is not final. It was not the intention of the Legislature that an interim freezing order should be in place in perpetuity. When conjoined to an unexplained wealth order, the intention of the Legislature was to avoid dissipation of the properties in question for a reasonable period to afford the Prosecutor General an opportunity to take further action in respect of such properties. Such action could be the filing of an application for civil forfeiture of the properties in question. It could also be the criminal prosecution of the person alleged to have acquired such properties through proceeds of serious crime. The objective, in the latter scenario, would be to seek and obtain an order for the confiscation of such properties in the event that the accused is convicted.

[9] In *Golden Reef Mining (Private) Limited and Anor* v *Mnjiya Consulting Engineers (Pty) Limited* SC 55/16; *Wector Enterprises Private Limited* v *Luxor Private Limited* SC 31/15 and Trustees (for the Time Being) of *Tongogara Community Share Ownership Trust* v *Maltrix Reality (Private) Limited* HH 247/18 it was held that "good cause" means "sufficient" or "satisfactory." Since the Act does not define "good cause" what this means is that this court exercises a discretion, on the facts and circumstances of the matter before it, in determining whether a "sufficient" or "satisfactory" basis has been established for the setting aside of the interim freezing order. Put simply, I must determine, in the words of s 37J(2) of the Act, whether the applicant has on the facts and circumstances of this matter, established "good cause for the setting aside of the interim freezing order."

[10] The applicant, like any other owner, has the right to use, possess, occupy and derive any other benefit from their property. In entrenching property rights s71(2) of the Constitution reads:

> "…every person has the right, in any part of Zimbabwe, to acquire, hold, occupy, use, transfer, hypothecate, lease or dispose of all forms of property either individually or in association with others."

These are the rights that the applicant has been unable to exercise, in respect of the properties in question, since 27 January 2023. That is more that two and half years ago.

[11] The first respondent has not done anything to progress the matter over the period in question. She has not filed an application for an order for the civil forfeiture of all or some of the properties identified in the interim freezing order. She has not instituted the criminal prosecution of the applicant on allegations of having committed any serious crime or crimes related to his

acquisition of all or any of the properties in question. She has not communicated with the applicant at all regards her intentions relative to the properties the subject of the interim freezing order. In these circumstances, it was not surprising that Mr Mufute, for the first respondent, was unable to make any meaningful submissions in opposition to the application for the setting aside of the interim freezing order. Indeed, I consider that Mr Mufute acted properly in eventually conceding that, on a reading of the record, there was no evidence that the first respondent had done anything after the granting of the interim freezing order as way back as 27 January 2023. In the circumstances, I am satisfied that it would be unjust not to accede to the application for the setting aside of the interim freezing order. The order was never meant to remain in force in perpetuity. The first respondent who applied for and obtained that order, has not taken advantage of that order by taking positive action to either apply for an order for civil forfeiture of some or all of the property in question. In the same vein, as I write this judgment, no criminal prosecution of the applicant for any serious crime or crimes vis-à-vis some or all of those properties has seen the light of day.

[12] In the result, IT IS ORDERED THAT:

1. The application be and is granted.

2. The interim freezing order granted under case number HACC 01/23 is set aside.

3. The applicant is allowed to deal in the following property:

(a) a certain piece of land situate in the District of Salisbury being stand 3040 Salisbury Township of stand 3110 Salisbury Township measuring 3549 square metres being an undivided 7,4% share being Number 8 together with an exclusive right of occupation under Deed of Transfer 5519/09.

(b) a certain piece of land situate in the District of Salisbury, called Stand Number 2964 Marlborough Township of Stand 2891 Marlborough Township measuring 1990 square metres held under Deed of Transfer 5379/11.

(c) stand 1694 Impala Drive Extension, Beitbridge.

(d) stand 357 Mahatshula Township, Bulawayo measuring 1100 square metres held under Deed of Transfer 1333/16.

(e) stand 2500 Dulibadzimu, Beitbridge.

(f) stand 5303 Dulibadzimu, Beitbridge measuring 1440 square metres.

(g) certain piece of land in the District of Salisbury being remaining extend of stand 2963 Malborough Township measuring 1000 square metres held under Deed of Transfer 4242/14.

(h) certain piece of land in the District of Salisbury being stand 2972 Malborough Township of stand 2891 Malborough Township measuring 1990 square metres held under Deed of Transfer 572/12.

(i) stand 3801 Chikanga Township of stand 4436 Chikanga Township, Mutare measuring 312 square metres held under Deed of Transfer 5294/15.

(j) Toyota Hilux Registration Number ADV 5616 formerly ACA 8481.

(k) Toyota Raum Registration Number ACA 5159.

(l) Toyota Corolla Registration Number ABR 5405.

(m) Toyota Spacio Registration Number ABX 2200.

(n) Hino Dutro Registration Number ACD 1675.

(o) Toyota Nadia Registration Number ABK 5516.

(p) Nissan Sunny Registration Number ABC 5602.

(q) Nissan Hardbody Registration Number ABG 7752.

(r) Mazda Cappella Registration Number AAV 7841.

(s) Toyota Hiace Registration Number ACZ 7072.

(t) Nissan Civilian Registration Number ACL 0174.

(u) Toyota Hiace Registration Number ACZ 4017.

(v) Toyota Belta Registration Number AEH 4190.

(w) Toyota Hiace Registration Number ABJ 7097.

(x) Trailer Registration Number ABN 8284.

4. Case Number HCHACC 130/24 be and is struck out.

5. In respect of both case numbers HCHACC 11/25 and HCHACC 130/24 each party shall bear its own costs.

CHIKOWERO J:…….

The National Prosecuting Authority, first respondent's legal practitioners